DEPARTMENT OF HEALTH & HUMAN SERVICES

Public Health Service

Food and Drug Administration
9200 Corporate Blvd
Rockville MD 20850

DEC 4 2006

WARNING LETTER

Via Federal Express

Robert Ritch, MD
New York Eye and Ear Infirmary
310 East 14th Street
New York, NY 10003

Dear Dr. Ritch:

This Warning Letter is to inform you of objectionable conditions observed during the Food and Drug Administration (FDA) inspection conducted at your clinical site from August 30 through September 11, 2006, by an investigator from the FDA New York District Office. The purpose of this inspection was to determine whether activities and procedures related to your participation in the clinical studies with the [redacted] sponsored by [redacted], complied with applicable federal regulations. The product used in the study is a device as that term is defined in Section 201(h) of the Federal Food, Drug, and Cosmetic Act (the Act), 21 U.S.C. 321(h). This letter also requests prompt corrective action to address the violations cited.

The FDA conducted the inspection under a program designed to ensure that data and information contained in applications for Investigational Device Exemptions (IDE), Premarket Approval Applications (PMA), and Premarket Notification [510(k)] submissions are scientifically valid and accurate. Another objective of the program is to ensure that human subjects are protected from undue hazard or risk during the course of scientific investigations.

Our review of the inspection report prepared by the district office revealed serious violations of Title 21, Code of Federal Regulations (21 CFR), Part 812 - Investigational Device Exemptions. At the close of the inspection, the FDA Investigator discussed observations made during the inspection. Our subsequent review of the inspection report is discussed below:

1. **Failure to conduct an investigation in accordance with the signed agreement with the sponsor, the investigational plan, applicable FDA regulations, and any conditions of approval imposed by an IRB [21 CFR 812.110(b)].**

   Regarding the study titled: "[redacted]," under [redacted], you failed to adhere to the above-stated regulation. Examples of this failure include but are not limited to the following: